



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2830: fetal and prenatal development; instruction

MARSHALL FLOOR AMENDMENT

1. Prohibits a public school from allowing an abortion provider or a medical facility or organization that refers patients to an abortion clinic to:
 - a. provide health education instruction in the school;
 - b. provide health education instructional programs or curricula to the school or school employees; or
 - c. distribute or display any health education materials or media in the school that are created, paid for or donated by the abortion provider or bear an identifying mark of the abortion provider.
2. Authorizes the Superintendent of Public Instruction, if the Arizona Department of Education (ADE) determines that a public school is not in compliance with the prohibition and if the public school fails to correct the noncompliance within 90 days after receiving notice from ADE, to withhold any portion of the public school's state aid apportionment until ADE determines that the public school is in compliance with the prohibition.
3. Defines *abortion clinic* and *abortion provider*.

MARSHALL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2830
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Title 15, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 15-115.02, to read:

4 15-115.02. Health education instruction; prohibitions;
5 withholding of state monies; definitions

6 [A. A PUBLIC SCHOOL MAY NOT ALLOW AN ABORTION PROVIDER OR A MEDICAL
7 FACILITY OR ORGANIZATION THAT REFERS PATIENTS TO AN ABORTION CLINIC TO DO
8 ANY OF THE FOLLOWING:

9 1. PROVIDE HEALTH EDUCATION INSTRUCTION IN THE SCHOOL.

10 2. PROVIDE HEALTH EDUCATION INSTRUCTIONAL PROGRAMS OR CURRICULA TO
11 THE SCHOOL OR SCHOOL EMPLOYEES.

12 3. DISTRIBUTE OR DISPLAY ANY HEALTH EDUCATION MATERIALS OR MEDIA IN
13 THE SCHOOL IF THE MATERIALS OR MEDIA ARE CREATED, PAID FOR OR DONATED BY
14 THE ABORTION PROVIDER OR BEAR AN IDENTIFYING MARK OF THE ABORTION
15 PROVIDER.

16 B. IF THE DEPARTMENT OF EDUCATION DETERMINES THAT A PUBLIC SCHOOL
17 IS NOT IN COMPLIANCE WITH SUBSECTION A OF THIS SECTION AND IF THE PUBLIC
18 SCHOOL FAILS TO CORRECT THE NONCOMPLIANCE WITHIN NINETY DAYS AFTER
19 RECEIVING NOTICE FROM THE DEPARTMENT OF EDUCATION, THE SUPERINTENDENT OF
20 PUBLIC INSTRUCTION MAY WITHHOLD ANY PORTION OF THE PUBLIC SCHOOL'S
21 APPORTIONMENT OF STATE AID FROM THE DATE OF THE DETERMINATION OF
22 NONCOMPLIANCE UNTIL THE DEPARTMENT OF EDUCATION DETERMINES THAT THE PUBLIC
23 SCHOOL IS COMPLYING WITH SUBSECTION A OF THIS SECTION.

24 C. FOR THE PURPOSES OF THIS SECTION:

25 1. "ABORTION CLINIC" HAS THE SAME MEANING PRESCRIBED IN SECTION
26 36-449.01.

27 2. "ABORTION PROVIDER" INCLUDES:

28 (a) AN ABORTION CLINIC.

1 **(b) ANY ENTITY THAT CONTROLS, IS CONTROLLED BY OR IS UNDER COMMON**
2 **CONTROL WITH AN ABORTION CLINIC.**

3 **(c) ANY ENTITY THAT IS A PARTY TO A FRANCHISING, LICENSING OR**
4 **SIMILAR AGREEMENT WITH AN ABORTION CLINIC.**

5 **(d) ANY INDIVIDUAL WHO IS ACTING AS AN EMPLOYEE OR REPRESENTATIVE**
6 **OF AN ENTITY DESCRIBED IN SUBDIVISION (a) (b) OR (c) OF THIS PARAGRAPH.]>>**

7 Sec. 2. Title 15, chapter 7, article 1, Arizona Revised Statutes,
8 is amended by adding section 15-712.02, to read:

9 **15-712.02. Instruction on fetal development; requirements;**
10 **parental notice and opt out**

11 A. THE STATE BOARD OF EDUCATION SHALL:

12 1. DETERMINE THE GRADE LEVEL OR LEVELS IN WHICH INSTRUCTION ON
13 FETAL AND PRENATAL DEVELOPMENT IS APPROPRIATE.

14 2. ADOPT ACADEMIC STANDARDS IN THE AREA OF SCIENCE THAT REQUIRE
15 INSTRUCTION ON FETAL AND PRENATAL HUMAN DEVELOPMENT THAT IS CONSISTENT
16 WITH THE REQUIREMENTS PRESCRIBED IN THIS SECTION AND THAT IS
17 AGE-APPROPRIATE, FACTUAL AND FOCUSED ON ONLY PRENATAL HUMAN DEVELOPMENT AS
18 A BIOLOGICAL PROCESS.

19 3. INCLUDE INSTRUCTION ON FETAL AND PRENATAL HUMAN DEVELOPMENT IN
20 THE COMPETENCY REQUIREMENTS PRESCRIBED PURSUANT TO SECTION 15-701 OR
21 15-701.01, OR BOTH, IN THE AREA OF SCIENCE.

22 4. REQUIRE THAT INSTRUCTION PROVIDED PURSUANT TO THIS SECTION
23 INCLUDE AN OVERVIEW OF ALL OF THE FOLLOWING:

24 (a) PRENATAL HUMAN DEVELOPMENT THAT EXPLAINS THE BIOLOGICAL PROCESS
25 BY WHICH A HUMAN DEVELOPS FROM A SINGLE CELL, THROUGH SUCCESSIVE STAGES,
26 BEFORE BIRTH.

27 (b) FERTILIZATION AND EARLY CELLULAR DEVELOPMENT, INCLUDING:

28 (i) THE FORMATION OF A ZYGOTE THROUGH THE UNION OF HUMAN
29 REPRODUCTIVE CELLS.

30 (ii) EARLY CELL DIVISION AND GROWTH.

31 (iii) THE DEVELOPMENT OF A BLASTOCYST.

32 (iv) IMPLANTATION OF THE BLASTOCYST INTO THE UTERINE WALL.

33 (c) THE STAGES OF PRENATAL DEVELOPMENT, INCLUDING AN OVERVIEW OF
34 ALL OF THE FOLLOWING:

35 (i) THE GERMINAL STAGE THAT DESCRIBES EARLY DEVELOPMENT FROM THE
36 TIME OF FERTILIZATION UNTIL THE TIME OF IMPLANTATION.

37 (ii) THE EMBRYONIC STAGE THAT DESCRIBES THE EARLY STRUCTURAL
38 FORMATION, INCLUDING THE DEVELOPMENT OF FOUNDATIONAL TISSUES AND EARLY
39 ORGAN SYSTEMS.

40 (iii) THE FETAL STAGE THAT DESCRIBES THE GROWTH AND MATURATION OF
41 ORGANS AND BODY SYSTEMS FROM APPROXIMATELY THE NINTH WEEK OF DEVELOPMENT
42 UNTIL BIRTH.

43 (d) MAJOR DEVELOPMENTAL MILESTONES, INCLUDING:

44 (i) THE FORMATION OF THE BRAIN AND SPINAL CORD.

45 (ii) THE DEVELOPMENT OF THE HEART AND CIRCULATORY SYSTEM.

1 (iii) THE FORMATION OF LIMBS, FACIAL FEATURES AND OTHER
2 IDENTIFIABLE HUMAN STRUCTURES.
3 (iv) ONGOING GROWTH AND MATURATION OF ORGANS DURING THE FETAL
4 STAGE.
5 (e) SUPPORTING BIOLOGICAL STRUCTURES THAT ARE NECESSARY FOR
6 DEVELOPMENT, INCLUDING:
7 (i) THE AMNIOTIC SAC AND AMNIOTIC FLUID AND THEIR PROTECTIVE
8 FUNCTIONS.
9 (ii) THE PLACENTA AND ITS ROLE IN PROVIDING NUTRIENTS AND OXYGEN
10 AND REMOVING WASTE.
11 (iii) THE UMBILICAL CORD AND ITS FUNCTION AS A CONNECTION BETWEEN
12 THE FETUS AND THE PLACENTA.
13 (f) GENERAL PRINCIPLES OF HEALTHY PRENATAL DEVELOPMENT, INCLUDING
14 ONLY BIOLOGICAL AND PHYSIOLOGICAL FACTORS THAT SUPPORT NORMAL GROWTH AND
15 ORGAN DEVELOPMENT.
16 5. REQUIRE THAT INSTRUCTION PROVIDED PURSUANT TO THIS SECTION MEET
17 BOTH OF THE FOLLOWING:
18 (a) BE DESCRIPTIVE AND AGE APPROPRIATE.
19 (b) NOT INCLUDE INSTRUCTION ON SEXUAL ACTIVITY, SEXUAL BEHAVIOR,
20 CONTRACEPTION, ABORTION PROCEDURES OR REPRODUCTIVE DECISION-MAKING.
21 B. INSTRUCTION REQUIRED BY THIS SECTION IS NOT SEX EDUCATION AND
22 MAY NOT BE CLASSIFIED AS SEX EDUCATION FOR THE PURPOSES OF PARENTAL
23 CONSENT OR OPT-OUT REQUIREMENTS PRESCRIBED BY THIS TITLE.

24 Enroll and engross to conform
25 Amend title to conform

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